MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS

Approved 4-16-25

225 W. Main St.
Harrison, Michigan 48625

~~Un~~approved minutes
March 19, 2025

Meeting was called to order at 9:00 a.m.

Pledge of Allegiance to the Flag of the United States of America

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Jacob Gross, District 5 David Hoefling, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

District 4 Jeff Haskell and District 6 Jack Kleinhardt

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps, Treasurer Jenny Beemer-Fritzinger, Deputy Clerk Isha Walter, members of the public and zoom participants

APPROVAL OF AGENDA

It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to strike item XI.G Issuance of an informational press release from the Board of Commissioners' Meeting Agenda, **motion defeated**.

It was moved by Commissioner Majewski, seconded by Commissioner Housler to approve the agenda, **motion carried**.

APPROVAL OF MINUTES

It was moved by Commissioner Housler, seconded by Commissioner Fancon to approve the Board of Commissioners Minutes of February 19, 2025, the Closed Session Minutes of February 19, 2025 and the Committee of the Whole Minutes of March 5, 2025, **motion carried**.

GENERAL PUBLIC COMMENT

A member of the public made a comment regarding several out of budget items that have historically been purchased for the county. He asked if the Board would consider a budget adjustment to pay the outstanding 2023 Airport crack and seal invoice so the County Airport does not lose an awarded grant because of the unpaid invoice. Chairman Gilmore replied that the County Administrator is currently handling all the Airport Manager duties so there is no threat on the airport closing. They are waiting for an appointment with the Aeronautics Association to discuss their options. The member of the public also asked if a decision was made to pursue or not pursue legal action against the previous prosecutor to pay the legal fees for the lawsuit that she brought against the County and Chairman Gilmore responded that the Board of Commissioners decided not to proceed.

COMMUNICATIONS LIST

1. Medical Examiners Monthly Report – No discussion
2. Resolution Livingston County – No discussion
3. Letters of Support for BEAD Grant/Broadband Expansion – No discussion
4. Letter of Support for Conservation District – No discussion

This portion of the agenda was not brought before the Board of Commissioners, therefore there was no discussion.

PUBLIC HEARINGS/SPECIAL PRESENTATIONS

1. Michigan Association of Counties
   Stephan Currie, the Executive Director of the Michigan Association of Counties (MAC), gave a presentation with regard to the three types of services that MAC provides - advocacy at the State and Federal levels, education for Commissioners and other county personnel and services issues.

JUSTICE

1. Additional Employee for Circuit Court Clerk
   It was moved by Commissioner Hoefling, seconded by Commissioner Ambrozaitis to approve the hiring of an additional Circuit Court Clerk due to the anticipated workload shift in the courts

   It was moved by Commissioner Majewski, seconded by Commissioner Fancon to table the motion to approve the hiring of an additional Circuit Court Clerk due to the anticipated workload shift in the court for two months, Clerk Mott informed the Commissioners that tabling a motion could only take place at the very next meeting at the latest, Chairman Gilmore disagreed, stated that the motion to table was appropriate and called for the roll call vote to table the motion, which revealed:

   Yeas: (4) being Commissioners Fancon, Housler, Majewski and Gilmore
   Nays: (3) being Commissioners Gross, Hoefling and Ambrozaitis
   Absent: (2) Commissioners Haskell and Kleinhardt
   Motion to table prior motion for two months carried.

2. 911 Advisory Board Representative
   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to approve the reappointment of Jeff Yuchasz as the citizen representative position for the 911 Advisory Board for a two year term expiring December 31, 2027, **motion carried**.

3. Crime Victims Week Resolution
   It was moved by Commissioner Housler, seconded by Commissioner Ambrozaitis to adopt Resolution #25-08 declaring April 6, 2025 through April 12, 2025 as National Crime Victim Rights Week, roll call vote revealed:

   Yeas: (7) being Commissioners Gilmore, Gross, Hoefling, Housler, Majewski, Ambrozaitis and Fancon
   Nays: (0)
   Absent: (2) Commissioners Haskell and Kleinhardt
   Motion carried.

HEALTH AND HUMAN SERVICES

1. Senior Services
   It was moved by Commissioner Fancon, seconded by Commissioner Housler to approve an internal loan of $250,000 to Senior Services at 2% interest to be paid over 5 years with a payment of $52,583 per year, roll call vote revealed:

   Yeas: (7) being Commissioners Majewski, Housler, Hoefling, Gross, Gilmore, Fancon and Ambrozaitis
   Nays: (0)
   Absent: (2) Commissioners Haskell and Kleinhardt
   Motion carried.

HEALTH AND HUMAN SERVICES - continued

2. Community Mental Health Appointment
   It was moved by Commissioner Gross, seconded by Commissioner Majewski to reappoint Joe Phillips to the Central Michigan Community Health Services to a three year term expiring March 31, 2028, **motion carried**.

PHYSICAL RESOURCES AND ECONOMIC DEVELOPMENT

1. Materials Management
   It was moved by Commissioner Majewski, seconded by Commissioner Fancon to approve the adopted Heartland Material Management Planning Committee By-Laws and allow the County Administrator to sign, **motion carried**.

2. Agreement for Conservation District
   a. It was moved by Commissioner Hoefling, seconded by Commissioner Fancon to approve the continued Agreement with the Conservation District for Soil Erosion Services, roll call vote revealed:

      Yeas: (7) being Commissioners Ambrozaitis, Fancon, Gilmore, Gross, Hoefling, Housler and Majewski
      Nays: (0)
      Absent: (2) Commissioners Haskell and Kleinhardt
      Motion carried.

   b. It was moved by Commissioner Ambrozaitis, seconded by Commissioner Gross to approve the continued Agreement with the Conservation District for Spongy Moth Services, roll call vote revealed:

      Yeas: (7) being Commissioners Housler, Hoefling, Majewski, Ambrozaitis, Gilmore, Fancon and Gross
      Nays: (0)
      Absent: (2) Commissioners Haskell and Kleinhardt
      Motion carried.

3. Construction Board of Appeals
   It was moved by Commissioner Housler, seconded by Commissioner Fancon to appoint Andrew Erskine, Dave Porter and Charlie Heath and to reappoint Terry Thayer and Scott Miller to the Construction Board of Appeals for a two year term expiring December 31, 2026, **motion carried**.

4. East Michigan Council of Governments Board Additional Board Member
   It was moved by Commissioner Fancon, seconded by Commissioner Majewski to appoint Jerry Becker as the second Clare County Representative to the East Michigan Council of Governments Board, **motion carried**.

FINANCE AND ADMINISTRATION

1. Statutory Finance Committee
   It was moved by Commissioner Gross, seconded by Commissioner Hoefling to approve Statutory Finance Committee meeting minutes of February 18, 2025 in the amount of $117,973.51 and the meeting minutes of March 3, 2025 in the amount of $148,834.19, roll call vote revealed:

   Yeas: (7) being Commissioners Housler, Gilmore, Gross, Ambrozaitis, Fancon, Hoefling, and Majewski
   Nays: (0)
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion carried.

FINANCE AND ADMINISTRATION - continued

2. Monthly Expenditures
   It was moved by Commissioner Majewski, seconded by Commissioner Housler to approve the expenditures for the month of February 2025, in the amount of $4,022,768.64 with the General Fund expenditures totaling $1,074,469.62, roll call vote revealed:

   Yeas: (7) being Commissioners Gilmore, Gross, Majewski, Hoefling, Fancon, Ambrozaitis and Housler
   Nays: (0)
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion carried.

3. Budget Adjustments
   It was moved by Commissioner Hoefling, seconded by Commissioner Majewski to approve budget adjustment #25-64 in the amount of $93,000, roll call vote revealed:

   Yeas: (7) being Commissioners Gross, Hoefling, Housler, Ambrozaitis, Majewski, Gilmore and Fancon
   Nays: (0)
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion carried.

4. Evening Meeting
   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to revise the Board of Commissioners meeting schedule to accommodate evening meetings.

   It was moved by Commissioner Hoefling, seconded by Commissioner Gross to table the motion to revise the Board of Commissioners meeting schedule to accommodate evening meetings until the next meeting, **motion defeated**.

   The motion that was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to revise the Board of Commissioners meeting schedule to accommodate evening meetings was voted on and the **motion defeated**.

5. Zoom
   a. It was moved by Commissioner Housler, seconded by Commissioner Hoefling to continue the zoom live stream option for the Board of Commissioners' meetings, roll call vote revealed:

      Yeas: (4) being Commissioners Ambrozaitis, Gross, Majewski and Hoefling
      Nays: (3) being Commissioners Fancon, Housler and Gilmore
      Absent: (2) being Commissioners Haskell and Kleinhardt
      Motion carried.

   b. It was moved by Commissioner Fancon, seconded by Commissioner Gross to post the Board of Commissioners' meeting videos after the meeting, roll call vote revealed:

      Yeas: (7) being Commissioners Majewski, Housler, Hoefling, Ambrozaitis, Fancon, Gilmore and Gross
      Nays: (0)
      Absent: (2) being Commissioners Haskell and Kleinhardt
      Motion carried.

FINANCE AND ADMINISTRATION - continued

6. Committee of the Whole
   It was moved by Commissioner Gross, seconded by Commissioner Ambrozaitis to continue the Committee of the Whole meetings, roll call vote revealed:

   Yeas: (3) being Commissioners Hoefling, Ambrozaitis and Gross
   Nays: (4) being Commissioners Fancon, Gilmore, Housler and Majewski
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion failed.

7. Press Release
   It was moved by Commissioner Majewski, seconded by Commissioner Fancon to approve the issuance of an informational press release regarding the costs the county incurred for the Prosecutor vs. Clare County Board of Commissioners Lawsuit, roll call vote revealed:

   Yeas: (5) being Commissioners Gilmore, Gross, Fancon, Majewski and Housler
   Nays: (2) being Commissioners Ambrozaitis and Hoefling
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion carried.

   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to amend the motion to approve the issuance of an informational press release to include all lawsuits Clare County has been involved within the past twenty years, roll call vote revealed:

   Yeas: (3) being Commissioners Gross, Hoefling and Ambrozaitis
   Nays: (4) being Commissioners Fancon, Gilmore, Majewski and Housler
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion failed.

8. Intergovernmental Agreement
   It was moved by Commissioner Hoefling, seconded by Commissioner Majewski to approve the Intergovernmental Early Voting and Ballot Programming Agreement as presented expiring December 31, 2026 and authorizing ballot programming payment of $5,000 per election, roll call vote revealed:

   Yeas: (7) being Commissioners Gilmore, Ambrozaitis, Majewski, Housler, Fancon, Gross and Hoefling
   Nays: (0)
   Absent: (2) being Commissioners Haskell and Kleinhardt
   Motion carried.

ADMINISTRATOR'S REPORT

Administrator Lori Phelps mentioned that the Michigan Association of Counties (MAC) Presentation given by Stephan Currie included most of the topics she was prepared to speak about including the road funding, expansion of indigent defense for juveniles, the dedicated revenue sharing and the work towards the permanent funding solution for Michigan Courts. Administrator Phelps also confirmed that she has opened the 2025-2026 budget and has begun inputting the set numbers such as wages and insurances.

CLERK/REGISTER OF DEEDS REPORT

Clerk & Register of Deeds Lori Mott gave an update regarding the upcoming May 6, 2025 Special Election. The election ballots have been printed and announced that she was proud that Clare County was third in the state to complete ballot programming and place their ballot order. Clerk & Register of Deeds Mott also confirmed the local clerks will have their ballots within a week. She also shared that she has reached out to schedule some dedicated time with Clare County Senior Services and Clare County Veterans Affairs in an effort to answer questions for their respective clients regarding the services the Clerk's office offers.

TREASURER'S REPORT

Treasurer Jenny Beemer-Fritzinger provided all the statutory reports to the Commissioners including the current cash on hand, investments, and fund balances as of March 18, 2025 and the cash summary by funds for the month of February. She reported that her office is working on reconciling $57 million in 2024 property taxes and special assessments with the townships, cities, and village. They are 90% collected, which means only a 10% delinquency rate which is the status quo. The dollar amount delinquent that they will be purchasing to make all the taxing authorities whole is approximately $5.5 million. The county millage specifically levied with all tax adjustments accounted for is $6.8 million.

CHAIRMAN'S REPORT

Chairman George Gilmore reported that Sheridan Township residents are being recruited for solar production.

VICE CHAIRMAN'S REPORT

Vice Chairman Rick Fancon had nothing to report

COMMISSIONER'S REPORT

Commissioner Hoefling gave a report on each of the townships and committees he represents.

Commissioner Ambrozaitis had nothing to report.

Commissioner Housler had nothing to report.

Commissioner Majewski reported that the Greenwood Township Clerk had some misinformation regarding programming the ballots and he attempted to clear up her confusion.

Commissioner Gross announced that the Village of Farwell is having their annual Easter Eggstravaganza in the Park Saturday, April 12, 2025 from 11:00 a.m.-1:00 p.m. in the Farmer's Market building. They are looking for sponsors and community organizations to participate in the event. The Farmer's Market in Farwell resumes Saturday, May 3, 2025 and vendors can find applications on their website.

STATE OF THE COUNTY BUDGET

Administrator Phelps reported that the budget normally at this time is 46% expensed but it is only 38% expensed; which is good because there will be an increase in retirement payments for the next fiscal year.

PUBLIC COMMENT

A member of the public thanked Lori Phelps for helping him get into the Zoom meeting notes. He then asked if the press release regarding the amount spent on the former Prosecutor vs. Clare County Lawsuit will be broken into how much was spent prior versus how much was spent after the arbitration was refused by the County Commissioners. He also requested a press release be issued in regards to the costs and how much was paid out for Police, Corrections and other Clare County lawsuits in the same time period. His final comments were regarding the inability to hear the Commissioners clearly and questioned when the new microphone system will be installed. Administrator Phelps indicated that the new microphone system was expected be installed later this same week.

Another member of the public thanked the Board for releasing the lawsuit information.

UNFINISHED BUSINESS

None

NEW BUSINESS

1. Drain Board Internal Loan
   Treasurer Jenny gave an overview on the Clare County drain work that is set to be completed countywide. She reminded the Commissioners that the Drain Board is its own entity and they can take out their own bonding and financing however, it does have to go through the Clare County Board of Commissioners for final approval to sign the contracts. The Drain Board requested an internal loan at 1% interest payback. Treasurer Beemer-Fritzinger wanted to make sure the Board was aware that she will be moving money from one fund to another for that loan.

It was moved by Commissioner Majewski, seconded by Commissioner Fancon to adjourn the meeting at 10:17 a.m., **motion carried**.

Lori Mott, Clerk
Clare County Board of Commissioners

George Gilmore, Chairman
Clare County Board of Commissioners